COMPANY POLICY

Confidential Client Identity Protection & Unauthorized Information Access Prevention Policy

Policy Owner	Human Resources / Information Security
Applies To	All employees, managers, contractors, consultants, and temporary staff
Policy Classification	Internal – Confidential

1. PURPOSE

The purpose of this policy is to protect confidential client identities, client relationships, business information, trade secrets, and organizational interests.

The company follows a strict Need-to-Know Principle. Employees are permitted to access client names, identities, contact details, account information, and related confidential records only when such access is necessary for their assigned responsibilities and has been appropriately authorized.

No employee has an automatic right to obtain confidential client information simply because they work for the company.

Major reasons to protect client identities:

- **Malicious Intent:** The employee may be preparing to leave the company and steal clients, sell the data to a competitor, or launch a competing business.
- **Operational Ignorance:** They might simply be overzealous, misunderstanding their project scope, or trying to prove their worth without realizing the legal boundaries, creating critical risk to data privacy, client trust, and organizational security.
- **Social Engineering:** They could be acting under the influence of an external bad actor (phishing or insider threat pressure).

2. SCOPE

This policy applies to:

- All permanent and temporary employees.
- Managers, team leaders, and supervisors.
- Employees working across different projects or departments.
- Contractors, consultants, and third-party personnel.
- Anyone with access to company systems, client records, or confidential business information.

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3. STRICT NEED-TO-KNOW PRINCIPLE

Client identities and related information must only be disclosed to authorized employees who require the information to perform their assigned duties.

Employees must not:

- Request client names without a legitimate business requirement.
- Demand access to confidential client lists outside their assigned responsibilities.
- Pressure colleagues, supervisors, managers, or other departments to disclose client identities.
- Attempt to bypass established approval procedures.
- Use personal relationships, seniority, influence, intimidation, or repeated requests to obtain restricted information.
- Ask colleagues to disclose information they are not authorized to share.

IMPORTANT

Repeatedly requesting restricted client information does not create authorization to access it.

4. PROHIBITED EMPLOYEE CONDUCT

The following conduct is prohibited:

1. Aggressively demanding confidential client names.
2. Repeatedly pressuring employees after being informed that access is restricted.
3. Attempting to force colleagues or managers to reveal client identities.
4. Threatening, intimidating, or harassing employees who refuse unauthorized disclosure.
5. Seeking confidential information through unofficial channels.
6. Attempting to obtain client information using another employee's login credentials.
7. Copying, photographing, downloading, forwarding, or exporting restricted client records without authorization.
8. Sharing confidential client identities with unauthorized internal or external parties.
9. Retaliating against employees who refuse to disclose confidential information or report a suspected policy violation.

These restrictions apply whether the request is made verbally, through email, telephone, messaging applications, or in person.

5. EMPLOYEE RESPONSIBILITIES

Every employee must:

- Respect client confidentiality and data protection requirements.
- Access only information required for their assigned work.

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- Follow approved information access procedures.
- Refuse requests for confidential information when the requester lacks authorization.
- Avoid discussing client identities in public or unauthorized settings.
- Immediately report suspected unauthorized access, pressure, intimidation, or disclosure.
- Protect confidential information in electronic and physical formats.

Employees must not assume that a colleague's job title or seniority automatically authorizes access to client information.

6. RESPONSE TO UNAUTHORIZED REQUESTS

When an employee requests restricted client names without authorization, the receiving employee must respond professionally and consistently.

APPROVED RESPONSE

"Our company policies and client confidentiality agreements strictly limit access to client identities on a need-to-know basis. Since this information is not required for your current assignments, I cannot share it. If you have a legitimate business requirement, please submit a formal request through the appropriate authorization channel. Let's focus on the current project and your assigned responsibilities."

If the employee continues to pressure or intimidate the person receiving the request, the matter must be reported to the appropriate manager or HR representative.

7. MANAGEMENT AND HR RESPONSIBILITIES

Management, HR, and designated security personnel are responsible for implementing this policy. Their responsibilities include:

- Ensuring employees understand confidentiality obligations.
- Reviewing access permissions periodically.
- Investigating reports of unauthorized information requests.
- Documenting repeated demands, intimidation, or inappropriate conduct.
- Coordinating with IT/Security to review relevant access logs where justified.
- Consulting Legal and Privacy teams when necessary.
- Ensuring that employees who report concerns are protected from retaliation.
- Applying disciplinary measures consistently and fairly.

8. INCIDENT REPORTING AND INVESTIGATION

Any employee who experiences or witnesses attempts to obtain confidential client identities through pressure, intimidation, or unauthorized means should report the matter to HR, their manager, or the designated Information Security contact.

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Reports should include:

- Date and time of the incident.
- Name or role of the person making the request.
- Description of the information requested.
- Exact wording where reasonably available.
- Communication method (email, messaging application, telephone, or verbal).
- Names of witnesses, if applicable.
- Any supporting documentation.

All reports must be handled confidentially and investigated fairly.

The company will distinguish between legitimate access requests, misunderstandings, inappropriate workplace conduct, and deliberate attempts to bypass security controls.

9. DISCIPLINARY ACTION

Violations of this policy may result in appropriate corrective or disciplinary action, depending on the seriousness, frequency, intent, and impact of the conduct.

Possible measures include:

- Restriction or removal of unnecessary access privileges.
- Formal HR investigation.
- Suspension or termination, where justified under applicable law and company procedures.

Serious incidents involving unauthorized disclosure, data theft, deliberate security circumvention, or retaliation may require immediate escalation to senior management and Legal.

No disciplinary action will be imposed solely on the basis of an unverified allegation.

10. NON-RETALIATION

No employee may threaten, intimidate, discriminate against, or retaliate against another employee for:

- Refusing to disclose confidential client information without authorization.
- Reporting unauthorized access requests.
- Cooperating with an internal investigation.
- Following company confidentiality and security requirements.

Any retaliation may constitute a separate violation of company policy.

11. CONFIDENTIALITY AND DATA PROTECTION

All employees must comply with applicable data protection laws, contractual confidentiality obligations, NDAs, and company information security policies.

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Client identities must not be disclosed through personal email accounts, unauthorized messaging applications, personal devices, or other unapproved communication channels.

The company will implement appropriate technical and organizational safeguards to prevent unauthorized access, copying, transfer, or disclosure.

12. ACKNOWLEDGMENT AND ACCEPTANCE

All employees covered by this policy are expected to read, understand, and comply with its requirements.

Failure to comply may result in corrective or disciplinary action in accordance with applicable company procedures and law.

IMPORTANT POLICY VIOLATION – LEGAL NOTE

In India, a violation of the **Confidential Client Identity Protection & Unauthorized Information Access Prevention Policy** may attract the following legal provisions, including sections of the **Bharatiya Nyaya Sanhita (BNS), 2023**, along with the **Information Technology Act, 2000**.

Bharatiya Nyaya Sanhita (BNS), 2023

Section	Offence	Relevance to this policy
Section 316	**Criminal breach of trust**	Misuse or dishonest misappropriation of entrusted client information
Section 318	**Cheating**	Deception involving client information or identity
Section 351	**Criminal intimidation**	Threatening someone using confidential information

Information Technology Act, 2000

- **Section 43:** Unauthorized access to computer systems and data.
- **Section 66:** Computer-related offences involving dishonest or fraudulent acts under Section 43.
- **Section 66C:** Identity theft.
- **Section 66E:** Violation of privacy.
- **Section 72A:** Disclosure of personal information in breach of a lawful contract.

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